

demand prior to filing a lawsuit (specific to replevin) and the Motion is denied on this basis.

Defendants Teresa L. Moffitt and Theldor Farms, Inc.'s Motion for Summary Judgment or, in the Alternative, Summary Adjudication is denied in its entirety. Plaintiffs shall prepare and submit a form of order consistent with this ruling within two weeks.

#### **2-3. 23CV00692 HINOJOSA, ISIAH V. FORD MOTOR COMPANY ET AL**

*EVENTS: (1) Defendant A. Teichert & Son, Inc. dba Teichert Construction, Named as Doe 1, Teichert, Inc.'s Motion to Strike Portions of Third Amended Complaint*

*(2) Defendant A. Teichert & Son, Inc. dba Teichert Construction, Named as Doe 1, Teichert, Inc.'s Demurrer to Third Amended Complaint*

Given the issues with the rejection and re-submission of the Demurrer, as well as the incorrect hearing date and time in the Motion to Strike (10:00 a.m. is indicated rather than the correct time of 9:00 a.m.), on the Court's own motion, this matter is continued to July 1, 2026 at 9:00 a.m. No appearances are required on June 17, 2026.

#### **4. 24CV02590 GOODLIN, SCOTT ET AL V. WILLIAMS AG SERVICES, INC ET AL**

*EVENT: Plaintiff Scott Goodlin's Motion to Compel Defendant Williams Ag Services, Inc. to Respond to Scott Goodlin's Special Interrogatories, Set One (1), and for Sanctions*

Plaintiff Scott Goodlin ("Plaintiff" herein) has failed to include a Separate Statement in compliance with California Rules of Court Rule 3.1345(a), and the Motion is denied on that basis. See, *Mills v. U.S. Bank* (2008) 166 Cal.App.4th 871, 893 [the Court concluded that because Plaintiffs did not comply with the requirements of a code compliant separate statement, the trial court was well within its discretion to deny the motion to compel discovery on that basis]; *St. Mary v. Superior Court* (2014) 223 Cal.App 4th 762, 778 [the Court confirmed that failure to include separate statement required by Cal. Rules of Court provided justification of court's denial of discovery motion].

In addition, the Court finds that Defendant Williams Ag Services, Inc. ("Defendant" herein) provided supplemental responses to the discovery at issue on May 5, 2026 with verifications thereafter served on May 11, 2026 [See Declaration of Amanda G. Hebesha at ¶10]. Consequently, the Court deems the Motion to Compel to be moot and it is denied on that basis as well.

Finally, the Court also addresses Defendant's argument that Butte County Local Rule 2.14(C) requires Plaintiff to participate in the informal discovery process as mandated by the Court. However, the first sentence of the Rule states: "Should any party wish to voluntarily avail themselves of the procedure, or in the event that the Court orders the parties to comply with an informal Pretrial Discovery Conference then,..." Here, no such order has been made in this case and therefore Plaintiff was not required to make such a request prior to the filing of the instant Motion.